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Case Number: 24STCV34039 Hearing Date: July 17, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 17, 2026

Case Name: Thompson v. General Motors,
LLC

Case

No.: 24STCV34039

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant General Motors
LLC

Responding Party: Plaintiff Lakisha Thompson

Tentative

Ruling: Defendant General

Motors's demurrer is sustained.

Defendant General

Motors's motion to strike is granted.

Plaintiff

Lakisha Thompson ("Plaintiff") filed this action against General Motors, LLC ("Defendant") and Does 1 through 10. The First Amended Complaint alleged five causes of action against Defendant for: (1) violation Civil Code section 1793.2, subdivision (d); (2) violation Civil Code section 1793.2, subdivision (b); (3) violation Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability per Civil Code sections 1791.1, 1794, and 1795.5; (5) fraudulent inducement-concealment. Plaintiff alleges that on April 23, 2018, Plaintiff purchased a certified pre-owned 2016 Chevrolet Cruze Limited, vehicle identification number 1G1PE5SB8G7143140 ("Subject Vehicle").

On March 5, 2026, the Court sustained Defendant's demurrer to all of Plaintiff's causes of action in the FAC. The Court also granted Defendant's motion to strike.

On April 3, 2025, Plaintiff filed a Second Amended Complaint ("SAC") alleging the same five causes of action.

Defendant

demurs to Plaintiff's SAC and moves to strike Plaintiff's request for punitive damages. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

“The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Preliminary

Matter

As a

preliminary matter, Plaintiff’s opposition is untimely. Per Code of Civil Procedure section 1005, subdivision (b), the opposition, Plaintiff was required to file and serve her opposition no later than July 6, 2026. Plaintiff filed her opposition on July 13, 2026. Plaintiff did not provide the Court with any reason for her untimely filing. In the interest of judicial efficiency, the Court will exercise its discretion and consider the untimely opposition.

Meet and

Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendant

declares that the parties met and conferred telephonically on April 10, 2026. (Bhullar Decl., ¶ 2.) Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Defendant

demurs to all five of Plaintiff's claims in the SAC on the grounds that Plaintiff did not allege sufficient facts.

First,

Second, and Third Cause of Action

Recently,

the court in Rodriguez stated, "we think that if the Legislature had intended to define 'new motor vehicle' to include a potentially vast category of used cars' with unexpired new car warranties, 'it would have been done so more clearly and explicitly than tucking it into a reference to demonstrators and dealer-owned vehicles.'" (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 199 (emphasis added) (Rodriguez).) "[S]ection 1795.5 provides express warranty protections for used goods only where the entity selling the used product issues an express warranty at the time of sale." (Id. at p. 201.) A manufacturer is exempt under Civil Code section 1791, when a used vehicle is sold unless it is acting as a retailer or distributor. (See Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340.) "For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (Rodriguez, supra, 17 Cal.5th at p. 202.)

"It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties." (Rodriguez v. FCA US, LLC (2022) 77 Cal.App.5th 209, 218 aff'd (2024) 17 Cal.5th 189.)

Here,

Plaintiff alleges that she purchased a certified pre-owned vehicle and "entered into a warranty contract" on April 23, 2018. (SAC, ¶ 6.) Plaintiff also alleges that she purchased the Subject Vehicle at Win Chevrolet Hyundai in Long Beach.

(Id.) On March 5, 2025, the Court sustained Defendant's demurrer as to the first, second, and third causes of action because "Plaintiff does not allege that she purchased the Subject Vehicle with a "manufacturer's new car warranty." Nor does she allege that Defendant was acting in its role as a distributor or retailer. As written, the Song Beverly-Act is inapplicable to Plaintiff's claims." (March 5, 2025, Minute Order.)

Plaintiff

argues that, per Rodriguez and Kiluk, her claims against Defendant are viable even though the Subject Vehicle is a Certified Pre-Owned vehicle. But the Court is not persuaded by Plaintiff's argument. While the SAC alleges that the alleged defects appeared during the warranty period, the attachment to the SAC makes a contradictory claim. (SAC, ¶¶ 10, 15, 42, Ex. A.) The attachment states that the bumper-to-bumper warranty was 12 months or 12,000 miles, and the powertrain limited warranty was for up to 6 years or 100,000 miles, whichever came first. (Id. at Ex. A.) Thus, based on the SAC, Plaintiff has made contradictory claims regarding whether the alleged defect occurred during the warranty period.

Thus, the

Court sustains Defendant's demurrer as to Plaintiff's first, second, and third causes of action.

Fourth

Cause of Action – Breach of the Implied Warranty of Merchantability

"[O]nly

distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods." (Ruiz Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 399.)

The SAC

alleges that Plaintiff purchased a Certified Pre-Owned vehicle and does not allege that Defendant participated in the transaction as a retail seller of used cars. Plaintiff does not allege sufficient facts to constitute a cause of action for breach of implied warranty of merchantability.

Thus, the

Court sustains Defendant's demurrer as to Plaintiff's fourth cause of action.

Fifth

Cause of Action – Fraudulent Inducement-Concealment

Defendant

demurs to Plaintiffs' fifth cause of action on the grounds that the statute of limitations bars it and that it fails to allege sufficient facts to state a cause of action.

Statute
of Limitations

Causes

of action based on fraud have a three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d).) "Under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803 (Fox).) "In order to rely on the discovery rule for delayed accrual of a cause of action, a "plaintiff must affirmatively excuse his failure to discover the fraud within three years after it took place, by establishing facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry." (Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 436.)

Defendant

argues that on the face of the SAC, the SAC is barred by the three-year statute of limitations because Plaintiff alleges that she discovered prior to the filing of the action. (SAC, ¶¶ 42, 48.) Taking Plaintiff's allegations as true, the discovery period began to run when she was put on notice of the alleged cooling system defects. (SAC, ¶ 42.) Plaintiff filed her initial Complaint on December 23, 2024.

In

opposition, Plaintiff argues that the demurrer should be overruled because the Plaintiff alleges that she was deceived into not discovering the alleged defect. However, to invoke delayed discovery, Plaintiff must plead that a reasonable investigation would not have revealed the alleged defect. (Fox,

supra, 35 Cal.4th at p. 803.) Here, Plaintiff has not alleged facts to support the delay in discovery.

Similarly,
the FAC alleges that Class Action tolling applies. “[U]nder limited circumstances, if class certification is denied, the statute of limitations is tolled from the time of commencement of the suit to the time of denial of certification for all purported members of the class who either make timely motions to intervene in the surviving individual action.” (Fierro v. Landry's Restaurant Inc. (2019) 32 Cal.App.5th 276, 285.) Plaintiff identified Feliciano, et al. v. General Motors LLC (District Court, Case No. 1:14-cv-06374), however, this class action ended prior to Plaintiff's purchase of the Subject Vehicle. Thus, Class Action Tolling would not be applicable.

Defendant
also argues that equitable tolling for fraudulent inducement does not apply; however, Defendant does not cite to binding authority to support its argument. Also, Defendant relies on Trantafello v. Medical Center of Tarzana (1986) 182 Cal.App.3d 315, which does not support its arguments regarding equitable tolling.

Thus, the
Court sustains Defendant's demurrer on the grounds of the statutes of limitations.

Fails
to Allege Sufficient Facts

““The
required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40 (Rattagan).) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar

v. Superior Court (1996) 12 Cal.4th 631, 645 (Lazar).)

To state a claim

for fraudulent inducement-concealment, Plaintiff must allege: (1) the defendant “concealed or suppressed a material fact,” (2) the defendant was “under a duty to disclose the fact to the plaintiff,” (3) the defendant “intentionally concealed or suppressed the fact with the intent to defraud the plaintiff,” (4) the plaintiff was “unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact,” and (5) “as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311; Rattagan, supra, 17 Cal.5th at p. 40.)

Absent a fiduciary

relationship between the parties (which Plaintiff does not allege here), a duty to disclose can arise in only three circumstances: (1) the defendant had exclusive knowledge of the material fact; (2) the defendant actively concealed the material fact; or (3) the defendant made partial representations while also suppressing the material fact. (Bigler-Engler, supra, 7 Cal.App.5th at p. 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336 (LiMandri).) However, the duty to disclose only arises under any of these circumstances if there is “the necessary relationship giving rise to a duty to disclose as a ‘transaction’ between the plaintiff and defendant” (Bigler-Engler, supra, 7 Cal.App.5th at p. 311; Rattagan v. Uber Technologies, Inc., supra, 17 Cal.5th at 40 [requiring a “preexisting relationship between the parties, such as ‘between seller and buyer ... or parties entering into any kind of contractual agreement.’”] Warner Construction Corp. v. City of Los Angeles (1970) 2 Cal.3d 285, 294 [“In transactions which do not involve fiduciary or confidential relations”]; Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187–89 [rejecting concealment claim where plaintiffs “were not involved in a transaction with the parties they claim defrauded them”]; LiMandri, supra, 52 Cal.App.4th at p. 337 [“such a relationship can only come into being as a result of some sort of transaction between the parties”].)

Defendant

argues that Plaintiff does not meet the specificity requirement and did not allege a fiduciary relationship or transactional relationship to give rise to a duty between the parties.

In opposition, Plaintiff argues that her cause of

action for fraudulent inducement-concealment is sufficiently pleaded and that Defendant had a duty to disclose through a transactional relationship.

Plaintiff argues

that the warranty agreement with Defendant creates a sufficient transactional relationship, citing *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828.

Dhital

found that the plaintiffs' statutory warranty claims under the Song-Beverly Act were the equivalent of contract claims for the purposes of determining whether the economic loss rule applies. This did not, however, establish a duty to disclose. (*Dhital*, 84 Cal. App. 5th at 838, fn. 3.) Only later in its decision did the *Dhital* court state that the plaintiffs' allegations were sufficient to overcome the defendant's argument that there was no buyer-seller relationship giving rise to a duty to disclose. (*Id.* at 844.) The *Dhital* court explained that the plaintiffs sufficiently alleged that the requisite buyer-seller relationship existed because the plaintiffs had alleged that they bought the car from a Nissan dealership, Nissan backed the purchase with an express warranty, and Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to customers. (*Id.*)

In this case,

Plaintiff's allegations are distinguishable from *Dhital* because

Plaintiff does not allege that she bought the Subject Vehicle from Defendant. (SAC ¶ 6.)

Plaintiff does not adequately allege Defendant's exclusive knowledge of the specific defect in the Subject Vehicle that Plaintiff purchased. Rather, the SAC contains only conclusory statements, based on information and belief, about pre-production and post-production testing data, early consumer complaints, and warranty data, which would only suggest that some percentage of cars of the same year and model may have had a particular defect. (SAC ¶ 25-41.) These allegations are inadequate to demonstrate Defendant's exclusive knowledge of a defect in Plaintiff's specific vehicle.

Moreover, "[i]n

California, fraud must be pled specifically; general and conclusory allegations do not suffice." (*Lazar*, *supra*, 12 Cal.4th at p. 644.) Here, the SAC fails

to meet the specificity requirement needed for fraud-based claims.

Thus, the

Court sustains Defendant's demurrer as to the Plaintiff's fifth cause of action.

Motion

to Strike

Defendant moves

to strike the prayer for punitive damages.

Punitive damages may be available for

fraud. A plaintiff can recover punitive damages in tort cases where "the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Punitive damages thus require more than the mere commission of a tort. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-895 (Taylor).) Specific facts must be pleaded in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392 (Hillard).)

Because

the demurrer as to each of Plaintiff's causes of action was sustained, she has not alleged facts warranting that she is entitled to punitive damages.

Thus,

the Court grants Defendant's motion to strike.

Leave to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The

burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court denies leave to amend as the Plaintiff has not shown that the pleading can be successfully amended.

Conclusion

Defendant's demurrer is sustained as to all causes of action without leave to amend.

Defendant's motion to strike is granted.